From:	Des Hobson
To:	Edward Snook
Cc:	Scanning; SBC Development Control
Subject:	RE: S/COND/22/0316. Discharge of condition 10 (Framework, Landscape, Ecology & Arboricultural Management Plan) from previous permission S/OUT/13/1555. Land North Of A420, Eastern Villages, Swindon. South Marston and Rowborough
Date:	01 September 2022 15:53:22
Attachments:	image001.png image002.png image003.png image004.png

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Hi Ed

I have reviewed the 'Framework Landscape, Ecology and Arboricultural Management Plan' (FLEAMP) (FPCR, May 2022). Thank you for the amendments such as the detailed framework management principles table, however further work is required before the document will be in a position to meet the requirements of Condition 10 of S/OUT/13/1555.

I continue to recommend that the FLEAMP will need to be discharged in conjunction with the Design Code, as they run in parallel.

Thank you for confirming that in-built bird nest bricks will be included at a minimum ratio of one per residential unit. It is agreed that the detailed locations of these can be controlled through the RMs / LEAMPs, given there may be instances where clustering is more beneficial. Confirmation is required within the FLEAMP that the bird nest bricks will be provided in accordance with BS 42021:2022 British Standard for integral nest boxes, or as superseded.

Part b) of Condition 10 refers to South Marston Brook. Although I acknowledge that South Marston Brook falls within Rowborough, a note should be included within this document advising that this requirement of the condition will be considered as part of the Rowborough FLEAMP.

Part e) requires green infrastructure (GI) to be identified. While the Strategic Design Code (SDC) has plans setting out the areas of GI, the GI throughout the site will vary greatly in terms of its function, some of which will have negligible ecological value, such as the play areas or sports facilities. Please could a plan be provided, removing the areas of GI which will be ineffectual from an ecological perspective, so it solely illustrates the areas of the GI which will be beneficial in ecological terms.

Whilst the FLEAMP refers to woodland planting, it doesn't give any overall quantums for areas of woodland planting, or differentiate between the ecological benefits of having different types of woodland – such as woodland blocks, belts of clusters (these are referred to in the SDC). In the latest response to the SDC concerns were raised with the overall provision of woodland planting. It is essential this concern is considered across all of the relevant strategic documents. These comments are repeated below:

The current strategic documents fail to demonstrate that sufficient levels of woodland block planting are being delivered on the site. This is required across all of the strategic documents, to ensure consistency. It can also form a crucial part of character creation, and therefore the SDC needs to identify how the various areas of the GI network will achieve the desired character and interact with the other elements of the network. The primary areas of woodland illustrated on

p34/35 are existing, and therefore minimal planting is actually proposed. In particular, some of the more sensitive areas, for example the far eastern edge, do not appear to be proposing an appropriate landscaping response.

Detailed comments

Table 2. 1a. *"Periodic monitoring and removal of non-native/fish introductions/other non-native animals~~±~~* ***and Schedule 9 plants*** *where evident."* Add new words in bold.

4. Woodland and Scrub. Is there a reason why a species list cannot be provided now? Perhaps two species lists would be better: one for the well-drained higher land, a second for the seasonally waterlogged land. By agreeing it now, it significantly reduces the need for future negotiation when every LEAMP comes forward. Add sentence saying ***"any trees and shrubs which die or do not establish will be replaced the first planting season following each annual inspection during the first five years after planting***". *"Periodic monitoring and control/removal of non-native species as necessary,* ***including any Schedule 9 species****."*

Hedgerow mix seems too limited. Increase species list. Relate to dormouse section.

5a *"Protect existing hedgerows during construction in accordance with the CEMP* ***and BS 5837:2012, or as superseded****."*

5.4 Lighting. As previously requested, I think it would be best if you could add a statement to say that 'all lighting will follow published best practice guidance'.

5.7 Figure for bat boxes and bat bricks needs to be increased. If bat bricks are being fitted in 10% of houses, then this would equate to 238 for the whole development. How many houses is the South Marston element? It must be more than 500 houses. I think the figure needs to be increased to 20% of dwellings, located in ecologically appropriate locations. While I appreciate the clarity, is there a way of being able to potentially adjust the % in each parcel so that bat boxes are not 'wasted' in the more urban parcels? Can FPCR advise? I think the figure for boxes on retained trees needs to be increased to at least 80, if there are enough suitable trees in the South Marston area? Change text: *"The final location of the boxes will be provided on an annotated plan of the site* ***to Swindon Borough Council for approval*** *and provided to the appointed maintenance contractor."*
"Damaged **or missing** boxes ~~would~~ **will** be replaced **within three months of the defect being identified**."

5.10 needs amending to 1:1 boxes to dwellings.

5.21 Cut and paste error: *"• Existing retained hedgerow should be safeguarded with appropriate protective measures to BS 5837:2012 as set out in the Arboricultural Method Statement ~~(using spiral guards or tubes, non-plastic and biodegradable where possible~~)."*

"New hedgerow planting will occur across the site at a density and width to provide sufficient cover for dormouse". Please add more information here and in new hedgerow section. *"New hedgerow planting should contain species of suitable foraging value for hazel dormouse such as Oak, Honeysuckle., Dog Rose and Hawthorn. Retained hedgerows should be supplementary planted with these species where possible to enhance the retained hedgerows."* But this is not

currently expressed in the hedgerow species list.

6.1 Change text "Under the Environment Act and NPPF development **must achieve biodiversity net gain** ~~should seek to contribute a net gain in biodiversity where possible."~~ Text currently reflects 2012 NPPF.

6.3 Need to amend text here, so it complements 8.3-8.4. Currently it rather contradicts it. State that ecological management of the site will continue throughout the operational lifetime of the development.

8.4 State "Swindon Borough Council". It's not SMBC.

With kind regards

Des

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From: Des Hobson
Sent: 24 March 2022 16:19
To: Edward Snook <ESnook@swindon.gov.uk>
Cc: Scanning <scanning@swindon.gov.uk>; sbcdc@swindon.gov.uk
Subject: RE: S/COND/22/0316. Discharge of condition 10 (Framework, Landscape, Ecology & Arboricultural Management Plan) from previous permission S/OUT/13/1555. Land North Of A420, Eastern Villages, Swindon. South Marston and Rowborough

Hi Ed

I have reviewed the **'Framework Landscape, Ecology and Arboricultural Management Plan'** (FLEAMP) (FPCR, 21.2.22). I recommend that Condition 10 of S/OUT/13/1555 should not be discharged. I also recommend that the FLEAMP will need to be discharged in conjunction with the Design Code, as they run in parallel.

This FLEAMP is submitted for South Marston only. A separate FLEAMP will detail the management for Rowborough. (1.4).

The document currently only sets out some very broad principles, which, as far as it goes, are fine. However, it is by no means yet a "framework" ready for final detail. The FLEAMP needs to contain substantially more detail before it will be acceptable. By providing now as much detail as possible the FLEAMP will:

a) Simplify and speed up the RM applications, as only final details will need to be added, and a separate long document will not need to be prepared and reviewed each time.
b) Provide the applicant and LPA with confidence that that the biodiversity net gain predictions can be delivered.

For example, this extract from 4.12 illustrates the current lack of detail and caveats applied to it:

"Attenuation features will be designed where possible to maximise their biodiversity benefit, both in form and structure to provide organic non-uniform features which will support a range of habitats associated with wetlands, including aquatic and emergent vegetation, wet and marshy grassland, as well where possible, over-deepening to provide permanent water."

The FLEAMP needs to detail what <u>will</u> be done, not what might possibly be done. The framework needs to define clear principles such as typical profiles, maximum bank slope and species mixes which will be planted. And all caveats such as "where possible" need to be removed throughout the document. This is just one example: much more detail needs to be provided throughout the document.

This lack of detail runs throughout the document so I have not provided a detailed review of each paragraph at this stage. Species mixes need to be specified, management needs to be detailed.

5.4. Bats and lighting. I think sodium lighting has been superseded by LEDs. Section needs to follow Bats and Artificial Lighting (Institute of Lighting Professionals, 2018) or as superseded.

5.9. Bird boxes. FLEAMP needs to specify that one in-built swift brick will be included in each residential unit, sited by an ecologist. And in-built bat bricks will be included in suitable locations around the site. Bat and bird boxes to be made of woodcrete or other durable material, not wood. Provide details of monitoring and replacement.

5.14. Need details of mitigation area/s for reptiles and amphibians, to be ready prior to construction, so any reptiles found can be safely relocated.

6.3 Net gain. This section needs to be clear that management will continue throughout operational lifetime of the development. All of:
"A detailed 30-year biodiversity management plan [(LEAMP)] will be developed to support this as part of the Reserved Matters Application necessary for each phase, including details of the roles, responsibilities and management mechanism to be put in place, with targeted objectives for habitat creation and management, with prescriptions and an initial work programme, together with details of monitoring and reporting." is needed now, so principles are agreed now. This will simplify and speed up the RM applications, as only final details will need to be added, and a separate long document will not need to be prepared and

reviewed each time.

The FLEAMP needs to detail which parts of the ecology works will be provided by each development parcel. If the ecological mitigation has to be phased, it will need to be ecologically coherent. For example, dormouse mitigation would need to connect to ecological networks immediately, otherwise dormouse will disappear before the next phase is planted. Mitigation areas, such as for reptiles will need to be constructed in advance in their final location, so they are already fully established before needed. If phasing is essential then it needs to be clear what will be delivered where and when.

6.7 There is currently so little detail in the FLEAMP that the predictions made for biodiversity net gain are largely speculative at the present time. Once the FLEAMP contains adequate detail the Defra Biodiversity Metric will need to be provided in support.

The information provided to date falls far short of what Condition 10 of S/OUT/13/1555 requires:

"10. *Framework, Landscape, Ecology and Arboricultural Management Plan (FLEAMP)*
Prior to the submission of the first reserved matters at South Marston or Rowborough, a Framework Landscape, Ecology and Arboricultural Management Plan (FLEAMP) for that village in broad accordance with the Biodiversity Enhancement Options Plan (DN 1796-L-03 D) (submitted to LPA on 7th September 2017) shall have been submitted to and approved in writing by the Local Planning Authority. The FLEAMPs shall provide an overarching management plan for the development at South Marston and Rowborough.
The FLEAMPs shall:
a) Identify the feature specific objectives to achieve the overarching aim;
b) Provide measures to enhance the biodiversity of South Marston Brook through appropriate management of bank side vegetation, the re-grading of bank profiles and reconnecting
the South Marston Brook with its floodplain to create greater morphological diversity and a range of floodplain features such as scrapes and wetlands;
c) Provide the location, principles of design, purpose, function, buffer zone and construction of the wet features (ponds and SuDS), including connectivity of water features and designs which minimise the disturbance of wetland and riverine habitats, particularly watervoles;
d) Provide a strategy for net biodiversity gain and enhancement and new priority habitat creation including advanced mitigation and protective measures during construction, long term protection objectives, habitat connectivity, a maintenance schedule and proposals for allowing and restricting public access;
e) Identify the additional green infrastructure that will be created.
The development shall be laid out and made available for use in accordance with the approved FLEAMPs. The submitted FLEAMPs shall be in accord with the approved Open Space Parameter Plan.
Reason: To ensure biodiversity, green infrastructure and assets are protected, integrated with the development and enhanced in accordance with Policies SD3, EN1 and NC3 of the Swindon Borough Local Plan 2026. The FLEAMPs shall also ensure the development provides access to nature to promote human well-being and afford educational opportunities."

With kind regards

Des

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PLACEmaking Team
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Swindon Borough Council

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-----Original Message-----
From: sbcdc@swindon.gov.uk <sbcdc@swindon.gov.uk>
Sent: 02 March 2022 13:18
To: Des Hobson <DHobson@swindon.gov.uk>
Subject: S/COND/22/0316. Discharge of condition 10 (Framework, Landscape, Ecology & Arboricultural Management Plan) from previous permission S/OUT/13/1555. Land North Of A420, Eastern Villages, Swindon. South Marston and Rowborough

Dear Sir/Madam,

Please find enclosed planning application consultation letter. All comments should be sent to sbcdc@swindon.gov.uk.

Regards,

Planning Department